

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
June 29, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01185227 Diaz vs. UCA General Insurance Services, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court, but has not confirmed that the amount of the uncashed checks from the settlement has been transmitted to the cy pres recipient, Legal Aid at Work, despite the court's

		January 10, 2025 order stating that any uncashed check funds will be transferred to Legal Aid at Work. The court also notes that because a portion of the Judgment is being paid to a nonparty, Legal Aid at Work, plaintiffs must also submit an Amended Judgment that complies with CCP §§384(b) and 384.5, and Gov. Code §68520 within five (5) days of this ruling. Specifically, the Amended Judgment must state how much money is being paid to the nonparty, including any interest that accrued on the funds, and, if known, the purpose of the distribution to the nonparty and how it plans to expend the funds. The court's file will be closed ON THE CONDITION THAT, within five (5) days of this ruling, Plaintiffs must provide a declaration confirming that the uncashed check funds have been transferred to the cy pres recipient, Legal Aid at Work, and an amended judgment. Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2022-01261989 Guzman vs. Newport Heart Medical Group Inc.	Off Calendar
3	2022-01272018 Murillo vs. Doshi & Associates, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement will be transmitted to the State Controller's Office's Unclaimed Property Fund on or before June 19, 2026. The court's file shall be closed ON THE CONDITION THAT, within thirty (30) days of this ruling, Plaintiff must provide a declaration confirming that the remaining uncashed check funds have been transmitted to the State Controller's Office's Unclaimed Property Fund. Plaintiff is ordered to give notice of this ruling to Defendant.